

		defects in those responses, while Plaintiff's counsel asserts that the responses overall reflect substantial compliance. But the only copies of the belated responses which have been presented to the Court, as attached to the Leaf Decl. at Exs. 1-6, show only <i>unverified</i> responses, which do not demonstrate substantial compliance. The Motion is therefore DENIED. <i>Counsel for Defendant Regents of the University of California is to give notice of this ruling.</i>
9.	Tran v. Coshov 25-1530606	(Moot)
10.	Soteropoulos v. FCA US LLC 24-1492568	(Withdrawn)
11.	Druckrey v. Mercury Insurance Company 25-1494934	Before the Court is a demurrer and motion to strike filed by defendant California Automobile Insurance Company, erroneously sued as Mercury Insurance Company (Defendant) directed to the second amended complaint (SAC) of plaintiffs Craig Druckrey and Christine Druckrey (collectively, Plaintiffs). The demurrer is OVERRULED. The motion to strike is GRANTED WITH 20 DAYS LEAVE TO AMEND. Motion 1: Demurrer A breach of the implied covenant of good faith and fair dealing involves something beyond breach of the contractual duty itself. (<i>Careau & Co. v. Security Pacific Business Credit, Inc.</i> (1990) 222 Cal.App.3d 1371, 1394.) "[A]llegations which assert such a claim must show that the conduct of the defendant, whether or not it also constitutes a breach of a consensual contract term, demonstrates a failure or refusal to discharge contractual responsibilities, prompted not by an honest mistake, bad judgment or negligence but rather by a conscious and deliberate act, which unfairly frustrates the agreed common purposes and disappoints the reasonable expectations of the other party thereby depriving that party of the benefits of the agreement." (<i>Id.</i> at 1395.) Plaintiffs have adequately pleaded a claim for breach of the covenant of good faith and fair dealing. The SAC alleges Defendant confirmed coverage for the loss, but initial payments were "limited and facially insufficient" to repair the extensive damage to the Subject Property. (SAC ¶ 16.) The SAC alleges Defendant's own consultant informed Plaintiffs they could not complete repairs for the amount paid by Defendant and only after Plaintiffs retained a public adjusting company to assist them did Defendant concede the initial estimates were inaccurate. (See SAC ¶¶ 18-19.) While Plaintiffs allege Defendant issued supplemental payments, they also allege "after the supplemental payment on November 15, 2023, Defendant's pattern of undervaluing the loss and delays in payment continued." (SAC ¶ 20.) The SAC shows the delays and underpayments continued for two years, and that Defendant failed to issue a promised supplemental payment of \$77,098.46. (See SAC ¶¶ 21-30.)